IN THE UNITED STATES DISTRICT COURT
FOR THE WESTERN DISTRICT OF NORTH CAROLINA

LAURA ELIZABETH BELL, on behalf of herself and all others similarly situated, Plaintiff, v. CRAFT REVOLUTION, LLC d/b/a ARTISANAL BREWING VENTURES; ARTISANAL BREWING VENTURES CHARLOTTE, LLC; and DOE DEFENDANTS 1-10. Defendants.	)	Civil Action No.: **CLASS AND COLLECTIVE ACTION COMPLAINT** **JURY TRIAL DEMANDED**

Plaintiff Laura Elizabeth Bell ("Plaintiff"), on behalf of herself and all others similarly situated, alleges as follows:

INTRODUCTION

1. This is a class and collective action brought on behalf of "Tipped Employees" who work or have worked at any of the taprooms ("Taprooms") that are owned, operated and/or otherwise managed or controlled by Defendants Craft Revolution, LLC d/b/a Artisanal Brewing Ventures and Artisanal Brewing Ventures Charlotte, LLC (together "ABV," the "Company," or "Defendant"), and have been subject to the unlawful practices detailed herein.

2. Defendants operate Taprooms under the following brands: Southern Tier Brewing Company, Victory Brewing Company, Bold Rock Hard Cider, Sixpoint Brewery, and Southern Tier Distilling Company.

3. According to Defendants' website, ABV ". . . has operations in Lakewood, Buffalo, Cleveland, Pittsburgh, metro Philadelphia, Brooklyn, Asheville, Mills River, and Nellysford." See https://artbrewventures.com/about/ (last visited December 5, 2023).

4. Although ABV promotes the "independence" of the individual brands, ABV functions as a single integrated enterprise – a taproom that serves creative craft beers and, in the case of Southern Tier Distillery, craft liquors.

5. Defendants maintain a single website that incorporates each of the brands' Taprooms.

SUMMARY OF CLAIMS

6. Plaintiff brings this action as a collective action to recover unpaid wages, pursuant to the Fair Labor Standards Act of 1938, as amended, 29 U.S.C. § 201 et seq. ("FLSA" or the "Act").

7. Plaintiff brings this suit on behalf of the following similarly situated persons:

All current and former Tipped Employees who have worked for Defendants in the United States within the statutory period covered by this Complaint and elect to opt-in to this action pursuant to the FLSA, 29 U.S.C. § 216(b) (the "Collective Class").

8. Plaintiff also brings this action as a state-wide class action to recover unpaid wages pursuant to PA State Laws.

PARTIES

9. Plaintiff Laura Elizabeth Bell ("Plaintiff" or "Bell") is a resident of the Commonwealth of Pennsylvania, living in Pittsburgh, who was employed by Defendants as a "bartender" at the Southern Tier Brewing Company Taproom located at 316 N. Shore Drive, in Pittsburgh, Pennsylvania. While employed as a Tipped Employee, Defendant failed to compensate Plaintiff properly for all hours worked.

10. Pursuant to Section 216(b) of the FLSA, Plaintiff has consented in writing to be a plaintiff in this action. Her consent is attached hereto as Exhibit B.

11. Defendant Craft Revolution, LLC d/b/a Artisanal Brewing Ventures ("Craft Revolution") is a Delaware corporation that maintains its principal place of business at 4001 Yancey Road, Charlotte, North Carolina. In its annual report filed with the State of North Carolina, Craft Revolution describes its business as being a "parent company of breweries."

12. Defendant Artisanal Brewing Ventures Charlotte, LLC is headquartered at 4001 Yancey Road, Charlotte, North Carolina. According to its website, ABV was founded in 2014 and through mergers and partnerships, it "is building a portfolio of breweries and brands, including Southern Tier, Victory, Sixpoint, and Bold Rock."

JURISDICTION AND VENUE

13. This Court has subject matter jurisdiction over this matter pursuant to 28 U.S.C. § 1331 and 29 U.S.C. § 201 et seq.

14. Further, this Court also has supplemental jurisdiction over Plaintiff's state law claims pursuant to 28 U.S.C. § 1367 because those claims derive from a common nucleus of operative facts.

15. Venue is proper in this district pursuant to 28 U.S.C. § 1391(b)(ii) as a substantial part of the acts or omissions giving rise to the claims alleged herein occurred within this judicial district, and Defendants, as a single integrated enterprise, are subject to personal jurisdiction in this district.

PLAINTIFF'S EXPERIENCE WORKING FOR DEFENDANTS

16. As set forth above, Plaintiff was employed by Defendants as a "bartender" in their Pittsburgh Taproom location in the Commonwealth of Pennsylvania. Plaintiff worked at this location from in or about late August/early September 2018 through the end of July 2023.

17. Plaintiff typically worked four to five shifts per week. She would typically arrive at 3:45pm (approximately 15 minutes before the Taproom opened to the public) and would stay until approximately 11:00 p.m. to 11:30 p.m.

18. Plaintiff's hourly wage rate from Defendants was $2.83 an hour and earned tips from customers who chose to leave a gratuity. Plaintiff does not ever recall the hourly wage being raised by Defendants above $2.83 for any day worked, irrespective of how little tips were earned or the type of work performed.

19. Plaintiff recorded her work time by logging into Defendants' timekeeping system through the point-of-sale ("POS") system.

20. Typically, when Plaintiff would close the Taproom, Defendants' policy was such that managers would automatically clock her out so that management could perform their end-of-night accounting even though Plaintiff was still performing closing tasks. This also occurred at the start of her shift, as the timekeeping system would not record Plaintiff's compensable work time until 4:00 p.m., even though Plaintiff began working at 3:45 p.m.

21. Consequently, Plaintiff frequently worked off-the-clock ("OTC"). Indeed, illustrated by Exhibit D, Plaintiff was still performing closing side work tasks at 11:06 p.m., even though Defendants' timekeeping system had Plaintiff clocked out at 10:30 p.m.

THE TIP CREDIT PROVISION & REQUIREMENTS

FLSA Requirements

22. Rather than pay its Tipped Employees the applicable minimum wage (either the applicable state minimum wage or the federal minimum wage, whichever is higher), Defendants chose to take a tip credit and pay these employees less than the applicable minimum wage.

23. Under applicable law, in certain circumstances, it is permissible for an employer to take a tip credit and pay its employees less than the mandated minimum wage, provided that the employee's tips received from customers plus the cash wage paid by the employer equals at least the applicable minimum wage.

FIRST CLAIM FOR RELIEF

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

(On Behalf of the Collective Class)

24. Plaintiff, on behalf of herself and the Collective Class, realleges and incorporates by reference the paragraphs above as if they were set forth again herein.

25. At all relevant times, Defendants have had gross revenues in excess of $500,000.

26. At all relevant times, Defendants have been and continue to be, an employer engaged in interstate commerce, within the meaning of the FLSA, 29 U.S.C. §§ 206(a) and 207(a).

27. Pursuant to their compensation policies, Defendants took a tip credit and paid Tipped Employees only the tip-credit wage, rather than the federally mandated minimum wage.

28. Defendants have violated and, continue to violate, the FLSA, 29 U.S.C. §§ 201 et seq. The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the meaning of 29 U.S.C. § 255(a).

29. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the members of the Collective Class, are entitled to recover from Defendants, compensation for unpaid wages; an additional equal amount as liquidated damages; and reasonable attorneys' fees and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

SECOND CLAIM FOR RELIEF

FAIR LABOR STANDARDS ACT MINIMUM WAGE VIOLATIONS

(On Behalf of the Collective Class)

30. Plaintiff, on behalf of herself and the Collective Class, re-alleges and incorporates by reference the paragraphs above as if they were set forth again herein.

31. As set forth above, Defendants failed to comply with the FLSA, its applicable regulations (including 29 C.F.R. § 531.56(e)), and DOL guidance (including the Department of Labor Field Operations Handbook §30d00(e) and §30d00(f)) by requiring Plaintiff and the members of the Collective Class to perform non-tipped labor unrelated to their tipped occupation over the course of their regular workweek, while paying said employees at the sub-minimum wage, tip credit rate.

32. Examples of such non-tipped labor unrelated to the primary duties of Tipped Employees includes, but are not limited to, taking out the trash, bringing in kegs on pallets, rolling silverware, and stocking inventory.

33. Defendants have violated, and continue to violate, the FLSA, 29 U.S.C. §§ 201 et seq. The foregoing conduct, as alleged, constitutes a willful violation of the FLSA within the meaning of 29 U.S.C. § 255(a).

34. Due to Defendants' FLSA violations, Plaintiff, on behalf of herself and the members of the Collective Class, are entitled to recover from Defendants, compensation for unpaid wages; an additional equal amount as liquidated damages; and reasonable attorneys' fees and costs and disbursements of this action, pursuant to 29 U.S.C. § 216(b).

PRAYER FOR RELIEF

WHEREFORE, Plaintiff, individually and/or on behalf of herself and all other similarly situated members of the Collective Class and members of the PA Class respectfully requests the Court grant the following relief:

A. Designation of this action as a collective action on behalf of the Collective Class, and prompt issuance of notice pursuant to 29 U.S.C. §216(b), apprising them of the pendency of this action, and permitting them to assert timely FLSA claims in this action by filing individual Consents to Sue pursuant to 29 U.S.C. §216(b);

B. Designation of the action as a class action under F.R.C.P. 23 on behalf of the PA Class;

C. Designation of Plaintiff as representative of the Collective Class and the PA Class;

D. Designation of Plaintiff's counsel as class counsel for the Collective Class and the PA Class;

E. A declaratory judgment that the practices complained of herein are unlawful under the FLSA, PMWA, and WPCL;

F. An injunction against Defendants, as provided by law, from engaging in each of the unlawful practices, policies and patterns set forth herein;

G. An award of unpaid minimum wages to Plaintiff and the members of the Classes;

H. An award of liquidated damages to Plaintiff and members of the Classes;

I. An award of interest to Plaintiff and members of the PA Class;

J. An award of costs and expenses of this action together with reasonable attorneys' and expert fees to Plaintiff and members of the Classes; and

K. Such other and further relief as this Court deems just and proper.

DEMAND FOR TRIAL BY JURY

Pursuant to Rule 38(b) of the Federal Rules of Civil Procedure, Plaintiff hereby demands a trial by jury on all questions of fact raised by the complaint.

Dated: January 8, 2024

Respectfully submitted,

JAMES, MCELROY & DIEHL, P.A.
By: /s/ J. Alexander Heroy
J. Alexander Heroy
525 North Tryon Street, Suite 700
Charlotte, NC 28202
Telephone: 704-372-9870
Facsimile: 704-333-5508
Email: aheroy@jmdlaw.com

CONNOLLY WELLS & GRAY, LLP
Gerald D. Wells, III
Robert J. Gray
101 Lindenwood Drive, Suite 225
Malvern, PA 19355
Telephone: 610-822-3700
Facsimile: 610-822-3800
Email: gwells@cwglaw.com
rgray@cwglaw.com
Attorneys for the Plaintiff and the Proposed Classes